

3.	JPMORGAN CHASE BANK, N.A. VS. SVOBODA 2024-01439224	MOTION TO SET ASIDE/VACATE JUDGMENT Plaintiff JPMorgan Chase Bank, N.A.’s motion to vacate the judgment obtained on March 12, 2025, and for order of dismissal is DENIED without prejudice. On 9-16-25, the court denied, without prejudice, Plaintiff’s prior motion to vacate judgment and enter dismissal for failure to include a supporting memorandum. (ROA 33.) Plaintiff’s instant Motion again fails to include a Memorandum of Points and Authorities in support of the Motion as required by California Rules of Court rule 3.1113. Specifically, Rule 3.1113, subdivision (a) provides, “A party filing a motion ... must serve and file a supporting memorandum. The court may construe the absence of a memorandum as an admission that the motion or special demurrer is not meritorious and cause for its denial and, in the case of a demurrer, as a waiver of all grounds not supported. (Cal. Rules of Court, rule 3.1113, subd. (a).) Further, Rule 3.1113, subd. (b) provides, “The memorandum must contain a statement of facts, a concise statement of the law, evidence and arguments relied on, and a discussion of the statutes, cases, and textbooks cited in support of the position advanced.” (Cal. Rules of Court, rule 3.1113, subd. (b).) Without the required Memorandum of Points and Authorities providing the statutory, legal and factual basis for the Motion, the court cannot rule on the merits of whether to vacate judgment and enter dismissal. Plaintiff to give notice.
4.	ALLY BANK, A CORPORATION VS. RIVERA 2025-01535491	APPLICATION FOR WRIT OF POSSESSION AND HEARING Plaintiff Ally Bank’s unopposed application for a writ of possession is DENIED. Plaintiff seeks issuance of a writ of possession directing defendant Yamil Alberto Colon Rivera to transfer possession of a 2018 Mercedes-Benz GLE-Class, VIN 4JGDA5JB1JB126817, to Plaintiff. Plaintiff also seeks an order deeming good cause exists for a brief examination of Defendant. Except as otherwise provided, “no writ shall be issued under this chapter except after a hearing on a <i>noticed</i> motion.” (Code Civ. Proc., § 512.020, subd. (a) [emphasis added].) Plaintiff has not established that Defendant received notice of this hearing. A proof of service is not attached to the notice of hearing,